



CHAPTER 64.

An Act to amend the Law relating to the Prevention of Corruption. A.D. 1916.
[22nd December 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. A person convicted on indictment of a misdemeanour under the Prevention of Corruption Act, 1906, or the Public Bodies Corrupt Practices Act, 1889, shall, where the matter or transaction in relation to which the offence was committed was a contract or a proposal for a contract with His Majesty or any Government Department or any public body or a sub-contract to execute any work comprised in such a contract, be liable to penal servitude for a term not exceeding seven nor less than three years :

Increase of
maximum
penalty in
certain cases.
6 Edw. 7.
c. 34.
52 & 53 Vict.
c. 69.

Provided that nothing in this section shall prevent the infliction in addition to penal servitude of such punishment as under the above-mentioned Acts may be inflicted in addition to imprisonment, or prevent the infliction in lieu of penal servitude of any punishment which may be inflicted under the said Acts.

2. Where in any proceedings against a person for an offence under the Prevention of Corruption Act, 1906, or the Public Bodies Corrupt Practices Act, 1889, it is proved that any money, gift, or other consideration has been paid or given to or received by a person in the employment of His Majesty or any Government Department or a public body by or from a person, or agent of a person, holding or seeking to obtain a contract from His Majesty or any Government Department or public body, the money, gift, or consideration shall be deemed to have been paid or given and received corruptly as such inducement or reward as is mentioned in such Act unless the contrary is proved.

Presumption
of corruption
in certain
cases.

A.D. 1916.

Time for
taking pro-
ceedings.

3. Notwithstanding anything in the Summary Jurisdiction Acts proceedings under the Prevention of Corruption Act, 1906, instituted with a view to obtaining a summary conviction for an offence thereunder may be commenced at any time before the expiration of six months after the first discovery of the offence by the prosecutor.

Short title
and interpreta-
tion.

4.—(1) This Act may be cited as the Prevention of Corruption Act, 1916, and the Public Bodies Corrupt Practices Act, 1889, the Prevention of Corruption Act, 1906, and this Act may be cited together as the Prevention of Corruption Acts, 1889 to 1916.

(2) In this Act and in the Public Bodies Corrupt Practices Act, 1889, the expression "public body" includes, in addition to the bodies mentioned in the last-mentioned Act, local and public authorities of all descriptions.

(3) A person serving under any such public body is an agent within the meaning of the Prevention of Corruption Act, 1906, and the expressions "agent" and "consideration" in this Act have the same meaning as in the Prevention of Corruption Act, 1906, as amended by this Act.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament,